



SPONSOR: Sen. Lockman & Rep. K. Johnson

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 115

AN ACT TO AMEND TITLE 25 OF THE DELAWARE CODE RELATING TO SUMMARY POSSESSION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 57, Title 25 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 Chapter 57. SUMMARY POSSESSION

4 § 5720. Expungement.

5 (a) A defendant in an action under this chapter may apply to the court in which the action was filed for an order
6 vacating the judgment and expunging the record of the action. The court must grant the defendant's motion if the court
7 finds any of the following:

8 (1) The judgment against the defendant was a judgment on the merits or a default judgment, 5 or more years
9 have passed since the judgment was entered, and the defendant has satisfied any monetary award included in the
10 judgment.

11 (2) The judgment was entered on stipulation of the parties, and the defendant has complied with the terms of
12 the stipulated agreement and satisfied any monetary award included in the judgment.

13 (3) The plaintiff withdrew the complaint.

14 (4) The court dismissed the plaintiff's complaint.

15 (5) The final judgment was in favor of the defendant.

16 (6) The plaintiff and the defendant have agreed to the expungement.

17 (7) The expungement is clearly in the interest of justice and that interest is not outweighed by the public's
18 interest in knowing about the action.

19 (b) If the court determines the defendant is eligible for relief under subsection (a) of this section, the court must
20 issue an order setting aside the original judgment and expunging the record of the action.

21 (c) On entry of the court's order under subsection (b) of this section, the action that is the subject of the motion is
22 deemed not to have been filed, and the defendant may answer accordingly any questions relating to the action's occurrence.

(d) Within 45 days of entry of the court's order under subsection (b) of this section, the court must do all of the following:

(1) Provide the defendant with a certified copy of the records being expunged.

(2) Provide the defendant with written notification that the records being expunged will no longer be accessible to the public through the Delaware court system.

(3) Remove the action from all state databases or systems that are publicly accessible, including CourtConnect.

(4) Ensure that any physical or electronic records held by the court that are associated with the action are stored in such a way as to be permanently inaccessible to the public or the parties.

(e) The court may not charge a filing fee for filing a motion under subsection (a) of this section.

(f) The court may promulgate such rules as necessary to implement this section.

Section 2. This Act takes effect 6 months after its enactment into law.

SYNOPSIS

This Act provides a pathway for former defendants in eviction actions to have the eviction filings against them expunged. Being the subject of an eviction filing can prevent an individual from securing housing for years after any judgement in the case has been satisfied. Even tenants who prevailed in eviction actions may be denied housing by landlords who turn away any applicant with a prior eviction filing, regardless of the outcome of the case. The well-known health, social, and economic consequences of eviction thus linger for years after an eviction filing, and trap individuals – including many children and families – in a cycle of poverty and housing insecurity. The effects are particularly acute among already marginalized groups, such as Black and female renters. By expunging eviction filings when an individual has met certain requirements, this Act will help break down barriers to stable housing and economic security.

Several states have already taken similar measures. In Minnesota, eviction expungement is mandatory after 3 years, and can occur even earlier under certain circumstances. In Oregon, an individual may file a motion for expungement after 5 years or if they entered into a stipulated agreement, provided they have paid off any monetary award included in the judgment or stipulation. An individual in Oregon may also be granted an expungement if the eviction case ended in a dismissal, if the court found in the individual's favor, or if the eviction judgement occurred during the COVID-19 crisis. Other states that have or are considering eviction expungement laws include California, Indiana, and Nevada.

Under this Act, an applicant for an expungement will be granted an expungement if the court in which the original eviction action was filed finds any of the following:

1. The judgment against the defendant was a judgment on the merits or a default judgment, 5 or more years have passed since the judgment was entered, and the defendant has satisfied any monetary award included in the judgment.
2. The judgment was entered on stipulation of the parties, and the defendant has complied with the terms of the stipulated agreement and satisfied any monetary award included in the judgment.
3. The plaintiff withdrew the complaint.
4. The court dismissed the plaintiff's complaint.
5. The final judgment was in favor of the defendant.
6. The plaintiff and the defendant have agreed to the expungement.
7. The expungement is clearly in the interest of justice and that interest is not outweighed by the public's interest in knowing about the action.

Once the court has granted an expungement, the court has 45 days to effectuate that expungement by ensuring that the record of the action is no longer available to the public or the parties, except that the court must give the defendant a certified copy of the record before the record is expunged.

An individual whose eviction record has been expunged can answer questions about prior evictions as if the expunged eviction action was never filed.

This Act takes effect 6 months after its enactment into law.

Author: Senator Lockman